

# HOUSE . . . . . No. 3080

---

## The Commonwealth of Massachusetts

PRESENTED BY:

*Kip A. Diggs*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to embarkation fees.

PETITION OF:

| NAME:               | DISTRICT/ADDRESS:     | DATE ADDED:      |
|---------------------|-----------------------|------------------|
| <i>Kip A. Diggs</i> | <i>2nd Barnstable</i> | <i>1/15/2025</i> |

# HOUSE . . . . . No. 3080

---

By Representative Diggs of Barnstable, a petition (accompanied by bill, House, No. 3080) of Kip A. Diggs relative to the imposition of embarkation fees from ferry services. Revenue.

---

[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE SENATE, NO. 2873 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to embarkation fees.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Section 129 of Chapter 46 of the acts of 2003, as amended by Section 11 of Chapter 55 of  
2           the acts of 2003, is hereby amended by striking out the section in its entirety and inserting in  
3           place thereof the following section:-

4           Section 129. (a) Notwithstanding any general or special law to the contrary, any city or  
5           town within the counties of Barnstable, Nantucket, Dukes and Bristol shall impose an  
6           embarkation fee upon all passenger ferry trips, excluding those ferry boats that are licensed to  
7           transport not more than 100 passengers, originating from a port located within such city or town,  
8           at a rate of \$2.00 per passenger per departing trip.

9           (b) The operator of the ferry service shall pay revenues from the embarkation fee  
10          imposed under this section to the commissioner of revenue on a quarterly basis. The operator

shall record the number of passengers subject to the embarkation fee departing from each port and forward said records to the commissioner of revenue at the time of payment of the embarkation fee for the purpose of crediting the embarkation fee revenues in accordance with this section.

The commissioner shall credit the embarkation fee revenues as follows:

25 per cent to a fire district that provides fire or public safety services to a port within a city or town that provides ferry service;

12.5 per cent to a city or town which does not provide ferry service but shares a harbor or port with a city or town in which a port is located; and

62.5 per cent to a city or town which contains a port and provides ferry service.

(c) All sums received by the commissioner under this section as embarkation fees, penalties or forfeitures, interest, costs of suit and fines shall be distributed, credited and paid by the state treasurer at least quarterly upon certification of the commissioner to each city, town, or fire district.

(d) Any city, town or fire district which is credited revenues pursuant to this section shall deposit such funds in a special fund which shall be appropriated solely for operations to mitigate the impacts of ferry service on the city, town or fire district including, but not limited to, harbor services, public safety services, emergency services or infrastructure improvements within and around the harbor of such city, town or fire district.

(e) A passenger with valid commuter fare, student fare, commuter excursion fare or school-related fare for ferry services shall be exempt from the embarkation fee. For the purposes

32 of this section, "commuter fare" shall mean any fare paid for through the purchase of a book of  
33 multiple tickets or through the Steamship Authority's Islands Preferred Excursion Program.